

The Evolution of the American “Criminal”: Black, Male, and Dangerous

In terms of pure etymology, when you trace the word *crime* to its earliest origin, you encounter the Latin word *crimen*. *Crimen* is defined by classical scholars as “primarily the accusation brought against a person, *justly* or *unjustly*.”¹ Paying particular attention to the indication that justice is not a prerequisite for criminalization, criminologists have conferred two primary meanings for our modern understanding of the word *crime*: The first being “an action of omission that constitutes an offense that may be prescribed by the state and is punishable by law.” The second is “an action or activity that, although not illegal, is considered to be evil, shameful, or wrong.”² Those with a cursory understanding of crime tend to equate the two, conflating their morals with legality – unintentionally. Funny enough, those with the most sophisticated understanding of crime tend to do the same – intentionally. As the story of “crime” and what makes a “criminal” unfolds in American history, we witness the increasingly disheartening phenomenon of individuals taking advantage of people's intuitive belief that there is little difference between the first and second definitions to develop their own social, political, and economic capital and preserve the system that reinforces their societal dominance above all else.

1607 to 1865: Colonial Crime and Punishment, Chattel Slavery, and The Slave Codes

The early American colonies were characterized by relative homogeneity and heavy religious sentiment. Throughout the 17th and 18th centuries, colonial criminal justice systems were largely designed to uphold biblical values. In Massachusetts Bay Colony and New Haven, crimes against the person like murder and assault were hardly considered crimes at all, while moral offenses such as drunkenness, theft, adultery, sodomy, and public masturbation (the works...) were classified and persecuted as *crime*. Those found guilty of a crime were often caught up in a

double jeopardy of sorts where they faced both criminal and religious sanctions for their actions. One of the most harrowing reflections of this system is the Salem Witch Trials. Witchcraft was considered a criminal offense; however, those who were accused were charged for the biblical sin of Witchcraft, punished in accordance with the Bible, and subsequently labeled as sinners and criminals. There are many theories as to why such hysteria occurred in Salem Village, ranging from looming anxiety about the Native American War to plain boredom. Nevertheless, the fact that the majority of the accused were women who were seen as acting outside of social norms, widows and poor women in particular, plays a partial if not major role in the panic that ensued.³ Not only did the Salem Witch Trials result in the unjustified deaths of over a dozen young women, but it highlights one of the earlier themes of criminalization in American history: fear of disrupting status quo, especially by those who thrive under it. As the concept of the *criminal* develops in the United States, it becomes common practice to label those who threaten existing power structures as “criminals” to simultaneously inspire the unwitting public to push back against those individuals and shirk responsibility away from the institutions they represent onto the individuals who are victims of those institutions.

Over in Richmond and the Chesapeake Colonies, labor shortages, high death rates, and low birth rates called for more practicality in the criminal justice system. Babies born out of wedlock were welcomed, not reprimanded, and capital punishment was a less frequent punishment than it was for their neighbors in New England. Additionally, as slave and poor

white populations increased, officials grew especially concerned with crimes committed by those at the bottom of the social hierarchy. Criminological theorist, Raymond Michalowski explains that the legal systems in Richmond County and the Chesapeake Colonies “became a

powerful weapon in the hands of the planter elite. It expressed their conception of the social order and functioned effectively.”⁴

From 1619 to 1864, this system was largely upheld by the Slave Codes, which regulated the lives of slaves from birth until death. In short, they were designed to serve the economic motives behind maintaining the institution of chattel slavery. The two main factors that determined a crime and its penalty were race and the extent to which the crime threatened white supremacy over black slaves. Thus, the Slave Codes defined a completely different set of laws and system of justice - or lack thereof - for enslaved Africans, inherently hyper-criminalizing them by imposing harsher penalties based on “degree of blackness.” Policies like the “one-drop rule” (being even one eighth black meant you were black under the law) ensured that as many people as possible would be bound under this system. The codes intentionally minimized the role of black victimhood in its structure. Crimes committed by black slaves against white people were punished more severely than crimes committed by free blacks, whereas crimes committed against free blacks and especially black slaves went largely unprosecuted. Typically, penalties for crimes committed against enslaved Africans had little concern for the personhood of the black victim but rather the property rights of the slave owner.⁵ One penalty for enslaved Africans included the branding of a letter that represented the crime for which they were accused onto their forehead, equating the individual with the crime and effectively dehumanizing them in all regards outside of their criminality.

Further, the Slave Codes also imposed harsh penalties on any action that threatened the institution of slavery. One of the most notable examples is the Fugitive Slave Act, passed in 1793, which criminalized being complicit with slavery by threatening a \$500 fine and up to a year in jail for all people who aided or abetted a freedom seeking slave. In the language of the

law, a freedom seeking slave was defined as “a criminal fugitive.”⁶ This is one of the more explicit cases where Africans seeking to escape enslavement (and those that assisted them) were distinctly identified as *criminals* for the direct threat they posed toward slavery and white supremacy as a whole. At this point in time, racism is widely accepted in both social and legal contexts, and it is far from taboo to openly criminalize the concept of being black and free to reinforce the economic condition of the planter elite. Though, as racism begins to lose its legal and social tolerance over time, the precedent of defining and labeling threats to racial and class dominance as *criminal* will become the most effective mechanism for social control. But at the same time, the process will grow increasingly secretive.

1865 to 1933: Emancipation, The Black Codes, and Jim Crow

The Reconstruction Era from 1865 to 1877 meant progress for Black Americans and series of losses for Whites in the American South. The economic sanctity of the planter elite and the little social superiority allotted to poor whites was no longer enshrined into law in light of the Thirteenth Amendment (1865), The Civil Rights Act of 1866, and the Fourteenth Amendment (1868). Slavery was abolished in the United States, Black Americans were awarded the protections of the Bill of Rights, full citizenship, equal protection and due process under the law, and voting rights. Not to mention The Enforcement Acts (1870 to 1871) that oversaw the protections of these voting rights and effectively dismantled the Ku Klux Klan (until the early 20th century)⁷. Southern rich Whites were not happy, and there was not much they could do about it...except for one convenient modifier that would come to serve as the foundation for the carceral state and systemic racism to this day. The Thirteenth Amendment, Section One states “Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their

jurisdiction.”⁸ “Except as punishment for crime whereof the party shall have been duly convicted.” Luckily for the Southern Whites, criminalization was their strong suit, and the definition of “duly convicted” was flexible.

Reconstruction backlash took advantage of this loophole to pass legislation that redesigned transparently racist policies to be ostensibly non-discriminatory. These policies are better known as the Black Codes, adopted in 1865. One example is the criminalization of vagrancy, making it nearly impossible for Blacks to work non-menial jobs due to excessive and economically burdensome licensing requirements.⁹ On the other end of the spectrum, White crimes were largely ignored, especially when committed against a Black citizen. This system allowed for the systemic lynching of Black Americans; vigilante organizations like the Ku Klux Klan took criminal justice into their own hands and largely ignored the *justice* component. Even among the laws that did not explicitly criminalize Black life (few and far between as they were), law enforcement was typically carried out on a discriminatory basis, disproportionately arresting, prosecuting, and penalizing Blacks.

The systemic hyper criminalization of Black life had the two-fold goal of replicating the economic structure of slavery and minimizing the degree to which Black southerners could exercise political power. Since labeling someone as a *criminal* meant that you could enslave them as part of the punishment for their crime, convict-leasing became common practice, where prisoners could be “leased” as cheap labor. Of the prison population forced into these arrangements, approximately 90% were Black.¹⁰ A slew of Felony Disenfranchisement laws were enacted - existing laws expanded - in response to the new voting rights “guaranteed” to Black citizens. By ensuring that Black residents were labeled as *criminals* as frequently as possible and that only “Black crimes” qualified for felony disenfranchisement, state and local

governments could prevent Black people from gaining any political capital en masse. Jim Crow laws and other segregation laws passed throughout the late 19th early 20th Centuries required that Black people use different facilities than white people. These statutes essentially made it a crime to be Black in White spaces.¹¹ Southern governments had effectively destroyed the spirit of reconstruction and reinforced white supremacy, rebranding what was once known to be a *slave* as a *criminal*; though, they both meant the same thing - *Black*.

1933 to 2000: Wars on Crime, Civil Rights, and The Politics of Paranoia

Though many trace the first War on Crime back to the Johnson Administration, the earliest case of national organization specifically interested in confronting *crime* was during FDR's first term in 1933. The original crime entrepreneurs Attorney General Homer Cummings and the director of the Federal Bureau of Investigation (FBI) J. Edgar Hoover led the United States through a period of massive institutional expansion of law enforcement after the public had lost trust in law enforcement post-prohibition. By calling it a *War on Crime*, Hoover and Cummings were able to capitalize on public fear against organized crime to unite both sides of the political aisle against a common enemy. Nothing mobilizes public opinion and resources like a war. Crime became a national threat, and criminals became national enemies. Additionally, as Civil Rights organizations pushed against the expansion of punitive crime policy, offering solutions that prevented lynchings and increased police oversight to reduce racialized violence, the FBI cast suspicion on these groups and characterized them as suspicious and complicit with crime. By 1941, the jurisdiction and resources of federal law enforcement had ballooned in size while ignoring discrimination in law enforcement. As a result, the systemic legal protection of the privileged at the expense of the vulnerable continued, only this time, on a much larger scale.¹²

The battle for civil rights made serious headway after the end of World War II, but, in the meantime, Southern States made it clear that they were not going down without a fight. State legislatures targeted common civil rights actions like the 1960 lunch counter-sit-ins by making it illegal to interfere with business. Those who had opposed the Civil Rights Act of 1957 would invoke similar arguments about crime rates and lawlessness to try and kill the Civil Rights Act of 1964.¹³ Civil rights opponents would continue to blame crime increases on civil rights actors who demonstrated that laws could be enforced selectively, pointing to violent protests. In her essay *Frontlash: Race and the Development of Punitive Crime Policy*, political scientist Velsa Weaver argued that punitive crime advocates “relied on two mutually reinforcing elements: (1) depoliticization and criminalization of racial struggle and (2) racialization of crime.”¹⁴ Nonetheless, the Civil Rights Act of 1964 passed under the Johnson Administration: discrimination on the basis of race, color, religion, sex, or national origin was explicitly prohibited under the law. Though, it did not take long before conservatives went right back to creating and capitalizing on public crime fear to combat any meaningful impact the Civil Rights Act of 1964 would make.

In the 1964 presidential election, republican candidate Barry Goldwater pushed crime to the top of the national agenda. Although he lost the election, liberals were in danger of losing votes unless they played into public crime concerns. Just a year after major civil rights legislation had been passed, Lyndon B. Johnson declared a War on Crime. Even in light of his War on Crime, Johnson still tried to be progressive in his solutions, proposing solutions that funded research to understand crime causes and prisoner rehabilitation while seeking to punish those who committed violence toward civil rights workers. The Law Enforcement Assistance Act of 1965 and the Omnibus Crime Control and Safe Streets Act of 1968 were enacted provide states

and local governments with assistance in reforming their criminal justice systems, but, in the end, they turned into a mechanisms for fueling racialized punitive policies by expanding police forces and targeting black and brown people. The same liberal fear of being seen as soft-on-crime would come up again in 1992 when candidate and Governor of Arkansas Bill Clinton's decision to refuse clemency to a severely developmentally disabled black man on death row to later assert that "no one can say I'm soft on crime."¹⁵ Similar sentiment would eventually culminate into the 1994 Crime Bill. As Weaver put it, "the United States has created a new political order and mode of governance that is structured around crime and the fear of crime."¹⁶

The central feature of his campaign being "Law and Order," President Richard Nixon would be one of the first presidents elected by capitalizing on the fear of crime. 1968 would mark a turning point in the War on Crime.¹⁷ Nixon would lead conservatives in convincing the public that more punishment was necessary as "there was a growing tide of lawlessness; civil disobedience led to violent riots; riots were not a legitimate grievance but were criminal acts; the right of society to be free from criminals was above rights of protesters (who were criminal)."

At the same time, the media's habit of anecdotal rather thematic reporting was reinforcing the American public's false reality of a crime epidemic and the paranoia-driven perception of a criminal. Even children's television, like superhero cartoons, would portray criminal offenders as "predators whose behavior is rooted in personal faults, who freely choose their behavior, who are unconstrained by social rules and moral values, and who are ultimately different from us." Street criminals in particular, most consistently associated with Black men, were depicted as run of the mill "thugs" and generally bad guys overall.¹⁸ Crime advocates popularized the concept of "Black on Black" crime to further associate Black men with inherently violent criminal behavior rather than addressing the environmental reasons as to why crime may be more prevalent in

some communities than others. Whereas, black Congressman John Conyers noted in 1979 that “‘black on black’ crime gives the erroneous impression of a strange, aberrant, or exotic activity, when it is taken out of the context of the social and economic roots of crime.”¹⁹

By reducing civil rights activists down to criminals and igniting crime fears across the country, Nixon was able to push “crime control” legislation that failed to address any substantial issues - most crime was property-based and rose fastest in rural areas. In fact, when the War on Crime began, crime rates were not anymore alarming than they had been in the past few years or even decades. All anti-crime policy did successfully was target Black and Brown communities.²⁰ Weaver also notes that the congressional patterns for civil rights opposition were nearly identical to policies and amendments that pushed punitive crime policy. It became no question that the “War on Crime” was not a war on crime at all, but a war on civil rights, a war on race.

Nixon proceeded to lead the nation into a “War on Heroin” in 1969, resulting in the Controlled Dangerous Substances Act of 1969 and the creation of the Office of Drug Abuse Law Enforcement. Both, of course, lead to increased surveillance and policing of black and brown communities.²¹ The War on Crime fully transitioned into a War on Drugs through New York State’s Rockefeller Laws of 1973, which “called for harsh sentences for drug crimes and limits on plea bargaining.”²² The policies that followed reflect a history of the racialization of criminal drug laws in the United States. In an effort to understand the racial dynamics of anti-drug legislation, Civil Rights attorney Richard Dvorak explains that the earliest drug prohibition law banned public opium dens in San Francisco out of fear that Chinese immigrants would open places where, quoting “the father of American narcotic laws” Dr. Hamilton Wright, “‘ places where whites might resort to smoke.’” This led to the Smoking Opium Exclusion Act of 1909. Dvorak further explains how throughout the 20th Century, as Marijuana became increasingly

associated with Mexican immigrants and African Americans, efforts to blame the drug for violent crime culminated in the Marijuana Tax Act in 1937, outlawing the sale, possession and use of marijuana. However, as Marijuana grew more popular among the white middle class in the 1960s, “by 1970, the federal Comprehensive Drug Abuse Prevention and Control Act Differentiated marijuana from other narcotics and lowered federal penalties for possession of small amounts.” As the crack-cocaine debate accelerated in the United States during the 1980s, the media overplayed the prevalence of crack, which was most commonly consumed in Black communities. Even after researchers repeatedly debunked the claims, public hysteria had resulted in the passage of the Anti-Drug Abuse Act of 1986 under Ronald Reagan which outlined disproportionate penalties for those who used crack cocaine over powder by a ratio of 100:1.²³ The years following this act, drug crime incarceration rates for African American women “increased 828 percent,” triple that of white women.²⁴ Just like the War on Crime, the War on Drugs failed to do anything to actually defeat the enemy it claimed to fight. The 1997 Office National Drug Control Policy strategy noted that cocaine, heroin, and marijuana were more widely available in the United States decades into the War on Drugs than they were at the beginning.²⁵ Just like the War on Crime, the War on Drugs became a War on Race, and the losers were Black and Brown communities plagued by mass incarceration and over-policing for generations to come.

The George Bush campaign in 1988 would capitalize on public perceptions of Black criminality by comparing Willie Horton, a Black man who was convicted of raping a White woman and stabbing her fiancée, to Michael Dukakis’ running mate Jesse Jackson. As Dvorak put it, “the Bush Campaign used Willie Horton to symbolize Michael Dukakis’ ‘soft on crime’ attitude, and symbolized the threat of Black male”²⁶ Throughout the 1990s, organizations like the National Rifle Association, the Heritage Foundation, and the American Legislative Exchange

Council would champion “truth in sentencing” and “Three Strikes and You're Out” laws as part of a campaign against *violent crime*. These efforts would largely influence the contents of what is often regarded as the one of the most extensive pieces of federal crime legislation to come out of the late 20th century wars on crime, the Violent Crime Control and Law Enforcement Act of 1994, which imposed “truth in sentencing” and “Three Strikes and You're Out” on a federal scale and vastly expanded the death penalty.²⁷ The legacy of this legislation and all of the legislation before it would carry punitive crime policy and the systemic criminalization of racial minorities into 21st century America.

The Historical Impact of Selective Criminalization on Housing and Conclusion

The history of the word *criminal* in America is in actuality the history of backlash against the movement toward social, economic, and political equality for people of color in the United States. As a result of the racialization of criminality, racial minorities face unique obstacles in ensuring safe and consistent housing. Policies like “one strike, you’re out” public housing,²⁸ the rise of criminal background checks to reject potential tenants,²⁹ and crime free housing ordinances³⁰ disproportionately affect minority communities who have been systemically criminalized and subsequently turned into criminals through vile legislative practices and outwardly racist law enforcement. As politicians gained political clout over arousing public fears around crime, they intentionally stood in the way of meaningful civil rights advances and used a carceral state to reinforce the white economic, social, and political supremacy that can be traced back to the advent of Chattel Slavery in the United States.

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